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APP-104 Proposed Statement on Appeal (Limited Civil Case)

Clerk stamps date here when form is filed.

FILED
Superior Court of California
County of Los Angeles

OCT 09 2026

David W. Slayton, Executive Officer/Clerk of Court
By: M. Rojas, Deputy

Instructions

- This form is only for preparing a proposed statement on appeal in a **limited civil case.**
- Before you fill out this form, read *Information on Appeal Procedures for Limited Civil Cases* (form APP-101-INFO) to know your rights and responsibilities. You can get form APP-101-INFO at any courthouse or county law library or online at *www.courts.ca.gov/forms.*
- This form can be attached to your *Appellant's Notice Designating Record on Appeal (Limited Civil Case)* (form APP-103). If it is not attached to that notice, this form must be filed **no later than 20 days after you file that notice. If you have chosen to prepare a statement on appeal and do not file this form on time, the court may dismiss your appeal.**
- Fill out this form and make a copy of the completed form for your records and for each of the other parties.
- Serve a copy of the completed form on each of the other parties and keep proof of this service. You can get information about how to serve court papers and proof of service from *What Is Proof of Service?* (form APP-109-INFO) and on the California Courts Online Self-Help Center at *www.courts.ca.gov/selfhelp-serving.htm.*
- Take or mail the original completed form and proof of service on the other parties to the clerk's office for the same court that issued the judgment or order you are appealing. It is a good idea to take or mail an extra copy to the clerk and ask the clerk to stamp it to show that the original has been filed.

You fill in the name and street address of the court that issued the judgment or order you are appealing:

Superior Court of California, County of
Los Angeles

You fill in the number and name of the trial court case in which you are appealing the judgment or order:

Trial Court Case Number:
22STUD06657

Trial Court Case Name:
FOX NORMANDIE APARTMENTS, LP v. DERRICK L. BEVERLY

You fill in the appellate division case number (if you know it):

Appellate Division Case Number:
26APLC00322

1 Your Information

a. Name of Appellant *(the party who is filing this appeal):*
Name: Derrick LaMont Beverly

b. Appellant's contact information *(skip this if the appellant has a lawyer for this appeal):*

Street address: 1929 Wilcox Avenue, Apt. #1 (*Street*) Los Angeles (*City*) CA (*State*) 90068 (*Zip*)
Mailing address *(if different):* _____ (*Street*) _____ (*City*) _____ (*State*) _____ (*Zip*)
Phone: (424) 388-0880 Email: dlb@dlbliclaw.com

c. Appellant's lawyer *(skip this if the appellant does not have a lawyer for this appeal):*

Name: _____ State Bar number: _____
Street address: _____ (*Street*) _____ (*City*) _____ (*State*) _____ (*Zip*)
Mailing address *(if different):* _____ (*Street*) _____ (*City*) _____ (*State*) _____ (*Zip*)
Phone: _____ Email: _____
Fax: _____

Information About Your Appeal

(2) On *(fill in the date):* 09/03/2026, I/my client filed a notice of appeal in the trial court case identified in the box on page 1 of this form.

(3) On *(fill in the date):* 10/9/26, I/my client filed a notice designating the record on appeal, electing to use a statement on appeal.

Proposed Statement

(4) Reasons for Your Appeal

Remember, in an appeal, the appellate division can only review a case for whether certain kinds of legal errors were made (read form APP-101-INFO to learn about these legal errors):

- *There was not "substantial evidence" supporting the judgment, order, or other decision you are appealing.*
- *A "prejudicial error" was made during the trial court proceedings.*

The appellate division:

- *Cannot retry your case or take new evidence.*
- *Cannot consider whether witnesses were telling the truth or lying.*
- *Cannot consider whether there was more or stronger evidence supporting your position than there was supporting the trial court's decision.*

(Check all that apply and describe the legal error or errors you believe were made that are the reason for this appeal.)

a. ☒ There was not substantial evidence that supported the judgment, order, or other decision that I/my client indicated in the notice of appeal is being appealed in this case. *(Explain why you think the judgment, order, or other decision was not supported by substantial evidence):* See attached APP-104, item 4.

b. ☒ The following error or errors about either the law or court procedure was/were made that caused substantial harm to me/my client. *(Describe each error and how you were/your client was harmed by that error.)*

(1) *Describe the error:*

Describe how you were/your client was harmed by the error:

4 b. (2) *Describe the error:*

Describe how you were/your client was harmed by the error:

(3) *Describe the error:*

Describe how you were/your client was harmed by the error:

☒ *Check here if you need more space to describe these or other errors and attach a separate page or pages describing the errors. At the top of each page, write "APP-104, item 4."*

5 The Dispute

a. In the trial court, I/my client was the *(check one):*

☐ Plaintiff (the party who filed the complaint in the case).

☒ Defendant (the party against whom the complaint was filed).

b. The plaintiff's complaint in this case was about *(briefly describe what was claimed in the complaint filed with the trial court):*
See attached APP-104, item 5.

c. The defendant's response to this complaint was *(briefly describe how the defendant responded to the complaint filed with the trial court):*
See attached APP-104, item 5.

☒ *Check here if you need more space to describe the dispute and attach a separate page or pages describing it. At the top of each page, write "APP-104, Item 5."*

(6) Summary of Any Motions and the Court's Order on the Motion

a. Were any motions (requests for the trial court to issue an order) made in this case that are relevant to the reasons you gave in (4) for this appeal?

☒ Yes *(fill out b)* ☐ No *(skip to (7))*

b. *In the spaces below, describe any motions (requests for orders) that were made in the trial court that are relevant to the reasons you gave in (4) for this appeal. Write a complete and accurate summary of what was said at any hearings on these motions and indicate how the trial court ruled on these motions.*

(1) *Describe the first motion:* See attached APP-104, item 6b(1).

The motion was filed by the ☐ plaintiff ☒ defendant.

There ☒ was ☐ was not a hearing on this motion.

If there was a hearing on this motion, write a complete and accurate summary of what was said at this hearing:

The trial court ☐ granted this motion ☒ did not grant this motion.

☐ Other *(describe any other action the trial court took concerning this motion):*

☒ *Check here if you need more space to describe this motion and attach a separate page or pages describing this motion. At the top of each page, write "APP-104, Item 6b(1)."*

(2) *Describe the second motion:* See attached APP-104, item 6b(2).

The motion was filed by the ☐ plaintiff ☒ defendant.

There ☒ was ☐ was not a hearing on this motion.

If there was a hearing on this motion, write a complete and accurate summary of what was said at this hearing:

The trial court ☐ granted this motion. ☐ did not grant this motion.

(6) b. (2) ☐ Other *(describe any other action the trial court took concerning this motion):* _____

☒ *Check here if you need more space to describe this motion and attach a separate page or pages describing this motion. At the top of each page, write "APP-104, item 6b(2)."*

(3) ☒ Check here if any other motions were filed that are relevant to the reasons you gave in (4) for this appeal and attach a separate page describing each motion, identifying who made the motion and whether there was a hearing on the motion, summarizing what was said at the hearing on the motion, and indicating whether the trial court granted or denied the motion. At the top of each page, write "APP-104, item 6b(3)."

(7) Summary of Testimony and Other Evidence

a. Was there a trial in your case?

☒ No *(skip items b, c, d, and e and go to item (8))*

☐ Yes *(check (1) or (2) and complete items b, c, d, and e)*

(1) ☐ Jury trial

(2) ☐ Trial by judge only

b. Did you/your client testify at the trial?

☐ No

☐ Yes *(Write a complete and accurate summary of the testimony you/your client gave that is relevant to the reasons you gave in (4) for this appeal. Include only what you actually said; do not comment or give your opinion about what was said. Please indicate whether any objections were made concerning your/your client's testimony or any exhibits you/your client asked to present and whether these objections were sustained.):* _____

☐ *Check here if you need more space to summarize your/your client's testimony and attach a separate page or pages summarizing this testimony. At the top of each page, write "APP-104, Item 7b."*

c. Were there any other witnesses at the trial whose testimony is relevant to the reasons you gave in (4) for this appeal?

☐ No

☐ Yes *(complete items (1), (2), and (3)):*

(1) The witness's name is *(fill in the witness's name):* _____

(2) The witness testified on behalf of the *(check one):* ☐ plaintiff ☐ defendant.

(7) c. (3) This witness testified that *(Write a complete and accurate summary of the witness's testimony that is relevant to the reasons you gave in (4) for this appeal. Include only what the witness actually said; do not comment on or give your opinion about what the witness said. Please indicate whether any objections were made concerning this witness's testimony or any exhibits this witness asked to present and whether these objections were sustained.):*

☐ *Check here if you need more space to summarize this witness's testimony and attach a separate page or pages summarizing this testimony. At the top of each page, write "APP-104, Item 7c."*

d. ☐ Check here if any other witnesses gave testimony at the trial that is relevant to the reasons you gave in (4) for this appeal. Attach a separate page or pages identifying each witness and who the witness testified for, summarizing the witness's testimony that is relevant to the reasons you gave in (4) for this appeal, and indicating whether any objections were made concerning this witness's testimony or any exhibits the witness asked to present and whether these objections were sustained. At the top of each page, write "APP-104, Item 7d."

e. Summarize the evidence, other than testimony, that was given during the trial that is relevant to the reasons you gave in (4) for this appeal. *(Write a complete and accurate summary of the evidence given by both you and the respondent. Include only the evidence given; do not comment on or give your opinion about this evidence.):*

☐ *Check here if you need more space to describe the evidence and attach a separate page or pages describing the evidence. At the top of each page, write "APP-104, Item 7e."*

(8) The Trial Court's Findings

Did the trial court make findings in the case?

☐ No

☒ Yes *(describe the findings made by the trial court):* See attached APP-104, item 8.

☒ *Check here if you need more space to describe the trial court's findings and attach a separate page or pages describing these findings. At the top of each page, write "APP-104, Item 8."*

9 The Trial Court's Final Judgment

The trial court issued the following final judgment in this case *(check all that apply and fill in any required information):*

a. I/My client was required to:

☐ pay the other party damages of *(fill in the amount of the damages):* $ _____

☐ do the following *(describe what you were ordered to do):* _____

b. The other party was required to:

☐ pay me/my client damages of *(fill in the amount of the damages):* $ _____

☐ do the following *(describe what the other party was ordered to do):* _____

c. ☒ Other *(describe):*
See attached APP-104, item 9.

☒ *Check here if you need more space to describe the trial court's judgment or order and attach a separate page or pages describing this judgment or order. At the top of each page, write "APP-104, Item 9."*

Date: 09/16/2026

Derrick LaMont Beverly
Type or print your name

/s/ Derrick LaMont Beverly
Signature of appellant or attorney

/s/ Derrick LaMont Beverly

DERRICK LAMONT BEVERLY
In Propria Persona, Sui Juris
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Telephone: (424) 388-0880
Email: dlb@dlbllclaw.com
Defendant/Appellant, In Propria Persona

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF LOS ANGELES - APPELLATE DIVISION

FOX NORMANDIE APARTMENTS, LP,
Plaintiff/Respondent,

v.

DERRICK L. BEVERLY,
Defendant/Appellant.

Appellate Division Case No. 26APLC00322 U3
Trial Court Case No. 22STUD06657

APP-104 ATTACHMENT - PROPOSED STATEMENT ON APPEAL

Appeal from September 2, 2026 postjudgment order

APP-104, ITEM 4 - REASONS FOR APPEAL

Point 1 - Code of Civil Procedure section 1008 treatment. The September 2, 2026 minute order treated the August 17, 2026 motion as a renewed motion or motion for reconsideration subject to Code of Civil Procedure section 1008(a) or (b), and denied it because Defendant had not submitted the declaration history the court found section 1008 required. Appellant contends review is warranted as to whether that procedural treatment and denial were proper in the context of the relief actually requested, including the asserted void-judgment theory under Code of Civil Procedure section 473(d).

Prejudice claimed. The ruling left the default and default judgment in force without granting the postjudgment relief requested.

Point 2 - Evidence Code section 647/service issue. The court further denied section 473(d) relief because it found Defendant had not offered credible evidence sufficient to rebut the registered process server's return concerning asserted personal service on October 27, 2022. Appellant challenges whether the record before the court supported that determination in light of the filed denial of personal service and the service-reconciliation materials contained in the trial-court record.

Prejudice claimed. The disputed service predicate remained the basis for leaving the default judgment undisturbed.

Point 3 - requested source-record development. Defendant's August 27 filings included a focused request concerning contemporaneous process-server source records. Appellant contends those records were material to the disputed service issue and to the evidentiary burden identified by the court.

Record limitation. This proposed statement does not ask the appellate division to receive post-September 2 evidence or retry credibility. It identifies points for review based on the trial-court record and September 2 proceeding.

APP-104, ITEM 5 - THE DISPUTE

Plaintiff filed a residential unlawful-detainer action on October 13, 2022. The court record later reflected a clerk default judgment on November 29, 2022. Defendant did not appear before entry of default. In 2026 Defendant sought postjudgment relief, disputing personal service and asserting that the default/default judgment should be vacated or set aside. The present appeal concerns the September 2, 2026 postjudgment order denying the August 17, 2026 motion, to the extent that order is appealable.

APP-104, ITEM 6b(1) - FIRST RELEVANT MOTION

On March 24, 2026 Defendant filed a postjudgment motion to set aside/vacate the default and default judgment. A hearing occurred April 22, 2026. The motion was denied. The precise grounds and complete proceedings are reflected in the April 22 minute order and related papers designated for the clerk's transcript. This summary does not add facts outside that record.

APP-104, ITEM 6b(2) - SECOND RELEVANT MOTION

On August 17, 2026 Defendant filed a Motion to Vacate Void Default and Default Judgment and, Upon Vacatur, Reinstate Action to Active Calendar, with alternative Code of Civil Procedure section 1008(b) relief and an evidentiary-hearing request. Plaintiff filed opposition, and Defendant filed reply/supplemental materials, including service-reconciliation and focused source-record materials.

At the September 2, 2026 hearing, Plaintiff's counsel Tracey Merrell appeared for Ada R. Cordero-Sacks via LACourtConnect. No appearance was made by or for Defendant. The minute order states that by 9:51 a.m. the court confirmed no remote or in-person appearance for Defendant. The court stated it had read and considered the filed documents. Plaintiff's counsel appeared in opposition, the court issued an oral tentative ruling, Plaintiff submitted on the tentative, and the court adopted the tentative as its final ruling. The motion was denied.

The minute order states two principal grounds: (1) the motion was treated as a renewed/reconsideration motion subject to Code of Civil Procedure section 1008(a) or (b), and the court found the required prior-application/new-or-different-facts declaration insufficient; and (2) on the merits, the court found Defendant had not offered credible evidence sufficient to rebut the registered process server's return under Evidence Code section 647 and had not shown the judgment otherwise void.

APP-104, ITEM 6b(3) - OTHER RELEVANT MOTIONS

The designated clerk's record also includes the June 22, 2026 reconsideration/renewed postjudgment application and related papers to the extent reflected in the court file, together with the August 12 and August 26 opposition papers and Defendant's August 27 reply/supplemental filings. The exact contents and dispositions should be taken from the certified clerk's transcript and minute orders rather than reconstructed beyond the preserved court record.

APP-104, ITEM 8 - TRIAL COURT'S FINDINGS

The September 2, 2026 minute order states that the August 17 motion was not Defendant's first effort to set aside the default/default judgment and therefore was subject to Code of Civil Procedure section 1008(a) or (b). The court found Defendant had not supplied the affidavit/declaration history it considered required. The court additionally found no credible evidence sufficient to rebut the registered process server's return regarding asserted personal service on October 27, 2022, citing Evidence Code section 647 and Palm Property Investments, LLC v. Yadegar (2011) 194 Cal.App.4th 1419. The court further stated Defendant had not submitted authority or evidence demonstrating that the underlying judgment was otherwise void.

APP-104, ITEM 9 - FINAL JUDGMENT / ORDER

The trial-court record reflects a clerk default judgment in the unlawful-detainer action entered November 29, 2022. The order identified in the September 3, 2026 Notice of Appeal is the September 2, 2026 postjudgment order denying Defendant's August 17, 2026 motion to vacate the default and default judgment, including alternative Code of Civil Procedure section 1008(b) relief and the evidentiary-hearing request, to the extent appealable.

Dated: September 16, 2026

/s/ Derrick LaMont Beverly

DERRICK LAMONT BEVERLY

Defendant/Appellant, In Propria Persona

DERRICK LAMONT BEVERLY
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Defendant/Appellant, In Propria Persona

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Superior Court of California
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David W. Slayton, Executive Officer/Clerk of Cou
By: M. Rojas, Deputy

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF LOS ANGELES - APPELLATE DIVISION

FOX NORMANDIE APARTMENTS, LP,
Plaintiff/Respondent,

v.

DERRICK L. BEVERLY,
Defendant/Appellant.

Appellate Division Case No. 26APLC00322 U3
Trial Court Case No. 22STUD06657

PROOF OF SERVICE - COMPLETE ONLY AFTER ACTUAL SERVICE BY A QUALIFIED NONPARTY SERVER

Appeal from September 2, 2026 postjudgment order

DO NOT SIGN OR FILE THIS PAGE UNTIL SERVICE HAS ACTUALLY BEEN COMPLETED BY A PERSON LEGALLY QUALIFIED TO SERVE.

I am over the age of 18 and not a party to this action. My residence or business address is: 1929 Wilcox Ave. #1 LA, CA 90068.

On 10/9, 2026, I served the following documents: NOTICE OF PROTECTIVE CURE OF APP-103 DEFAULT; APP-103; PROPOSED STATEMENT ON APPEAL (APP-104) AND ATTACHMENTS; and related notices/declaration.

I served the documents on counsel for Plaintiff/Respondent at the address(es) or authorized electronic-service address(es) stated below by the method checked and described: ada@lpacs.com, kmoderno@lpacs.com.

Recipient(s): Ada Cordero-Sacks / counsel of record, and any other counsel or service recipient required by the applicable service method and court record.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: 10/9/2026 Place: Los Angeles, CA

Signature of server: Derrick Lamont Beverly

Printed name of server: DERRICK LAMONT BEVERLY